

Prior Policy Number: Policy Number: 16 OH 0419413-23	HARTFORD FIRE INSURANCE CO., HARTFORD PLAZA, HARTFORD, CT 06115 A stock insurance company, herein called the Insurer	
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Design Professionals Liability Coverage

**THIS IS A CLAIMS MADE AND REPORTED POLICY.
PLEASE READ IT CAREFULLY.**

NOTICE: THIS LIABILITY COVERAGE PART PROVIDES CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE SPECIFIED HEREIN: COVERAGE APPLIES ONLY TO A CLAIM FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD AND WHICH HAS BEEN REPORTED TO THE INSURER IN ACCORDANCE WITH THE APPLICABLE NOTICE PROVISIONS. COVERAGE IS SUBJECT TO THE INSURED'S PAYMENT OF THE APPLICABLE RETENTION. PAYMENTS OF DEFENSE COSTS ARE SUBJECT TO, AND REDUCE, THE AVAILABLE LIMIT OF LIABILITY. PLEASE READ THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

DECLARATIONS		
ITEM 1a.	NAMED ENTITY: ADDRESS:	MB ARCHITECTURAL DESIGN & LLC 570 N BROAD ST ELIZABETH, NJ 07208-3314
ITEM 1b.	OTHER INSURED ENTITIES:	
ITEM 2.	PRODUCER:	Glenmara Group Corp DE AVE STE 132B CHESTER, NY 10918
ITEM 3.	POLICY PERIOD EFFECTIVE FROM (Inception Date): <u>1/02/2023</u> TO (Expiration Date): <u>1/02/2024</u> (AT 12:01 A.M. STANDARD TIME AT ADDRESS OF THE NAMED INSURED AS STATED HEREIN.)	
ITEM 4.	LIMITS OF LIABILITY	
	Per Claim Limit of Liability	\$1,000,000
	Professional Liability	
	Personal Injury Liability	
	Pollution Incident	
	Network Intrusion Liability	
	Rectification Expense	
	Aggregate Limit of Liability - All Claims	\$2,000,000
	LIMITS OF SUPPLEMENTARY PAYMENTS:	
	Disciplinary Proceeding Coverage	\$25,000
	Expense and Loss of Earnings Reimbursement	\$500 per day/\$7,500 per claim/\$25,000 per policy period

	Subpoena Assistance Coverage	\$100,000
	FHA, OSHA and ADA Proceedings Reimbursement	\$25,000
	Pre Claim Assistance and Prevention Expense	Included – No Applicable Limit
	Crisis Event Management Reimbursement	\$30,000
	Non Profit Directors and Officers Coverage	\$15,000
	Client Entity(ies) Fee Assistance Coverage	\$25,000

ITEM 5.	RETENTION: \$2,000 per Claim , including Damages and Defense Costs \$2,000 Aggregate										
ITEM 6.	PREMIUM: \$1,800.00 NJ Surcharge \$9.00										
ITEM 7.	RETROACTIVE DATE: 1/01/1900										
ITEM 8.	PRIOR or PENDING DATE: 1/02/2023										
ITEM 9.	<table border="0"> <tr> <th colspan="2">EXTENDED REPORTING PERIOD</th> </tr> <tr> <th>Number of Years</th> <th>Percentage of Annual Premium</th> </tr> <tr> <td>1</td> <td>125</td> </tr> <tr> <td>3</td> <td>225</td> </tr> <tr> <td>5</td> <td>300</td> </tr> </table>	EXTENDED REPORTING PERIOD		Number of Years	Percentage of Annual Premium	1	125	3	225	5	300
EXTENDED REPORTING PERIOD											
Number of Years	Percentage of Annual Premium										
1	125										
3	225										
5	300										
ITEM 10.	ADDRESS FOR NOTICES TO INSURER: <table border="0"> <tr> <td> FOR CLAIMS: The Hartford Hartford Financial Lines One Hartford Plaza Hartford, CT 06115 HFP <u>thford.com</u> Fax: (917) 555-0931 </td> <td> FOR ALL NOTICES OTHER THAN CLAIMS: The Hartford Hartford Financial Lines One Hartford Plaza Hartford, CT 06115 HFPE<u>xpress@thehartford.com</u> Fax: (866) 586-4550 </td> </tr> </table>	FOR CLAIMS: The Hartford Hartford Financial Lines One Hartford Plaza Hartford, CT 06115 HFP <u>thford.com</u> Fax: (917) 555-0931	FOR ALL NOTICES OTHER THAN CLAIMS: The Hartford Hartford Financial Lines One Hartford Plaza Hartford, CT 06115 HFPE<u>xpress@thehartford.com</u> Fax: (866) 586-4550								
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ITEM 11:	ENDORSEMENTS ATTACHED AT EFFECTIVE DATE: SEE FORM GU207 (SCHEDULE OF ENDORSEMENTS)										

ENDORSEMENT

This endorsement, effective on 1/02/23 at 12:01 A.M standard time, forms a part of

Policy No. 16 OH 0419413-23 of the HARTFORD FIRE INSURANCE CO.

Issued to MB ARCHITECTURAL DESIGN & LLC



Ross Fisher, President

SCHEDULE

	AE00H00201	6/21	DESIGN PROFESSIONALS LIABILITY COVERAGE DECLARATIONS
	AE00H00301	6/21	THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY POLICY COMMON TERMS AND CONDITIONS
1	AE00H01300	10/20	AT RISK CONSTRUCTION MANAGEMENT EXCLUSION
2	AE00H01500	3/21	BLANKET NOTICE ENDORSEMENT
3	AE00H01800	10/20	CONSTRUCTION AND SITE SAFETY EXCLUSION
4	AE00H05400	10/20	SPECIFIED PROFESSIONAL SERVICES EXCLUSION
5	AE00H05500	10/20	SPECIFIED PROJECT EXCLUSION
6	HR29H00100	6/04	NEW JERSEY CANCELLATION AND NONRENEWAL ENDORSEMENT
7	AE00H20001	6/21	DESIGN PROFESSIONALS LIABILITY COVERAGE PART
	HG00H12900	10/16	U.S. DEPARTMENT OF THE TREASURY, OFFICE OF FOREIGN ASSETS CONTROL ("OFAC")
	HR00H09300	2/07	PRODUCER COMPENSATION NOTICE

The Hartford Premier Choice Professional Liability Policy

COMMON TERMS AND CONDITIONS DESIGN PROFESSIONALS LIABILITY INSURANCE

NOTICE: THE LIABILITY COVERAGE PART PROVIDES CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE SPECIFIED HEREIN: COVERAGE APPLIES ONLY TO A CLAIM FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD AND WHICH HAS BEEN REPORTED TO THE INSURER IN ACCORDANCE WITH THE APPLICABLE NOTICE PROVISIONS. COVERAGE IS SUBJECT TO THE INSURED'S PAYMENT OF THE APPLICABLE RETENTION. PAYMENTS OF DEFENSE COSTS ARE SUBJECT TO, AND REDUCE, THE AVAILABLE LIMIT OF LIABILITY. PLEASE READ THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

In consideration of the payment of the premium, the Insurer and the **Insureds** agree as follows:

I. TERMS AND CONDITIONS

- (A) All Coverage Parts included in this Policy are subject to the following Common Terms and Conditions. If any provision in these Common Terms and Conditions is inconsistent or in conflict with the terms and conditions of any Coverage Part, the terms and conditions of such Coverage Part shall control for purposes of that Coverage Part.
- (B) Except as otherwise provided by specific reference to other Coverage Parts, the terms and conditions of each Coverage Part shall apply only to such Coverage Part.

II. COMMON DEFINITIONS

The following terms, whether used in the singular or plural, shall have the meanings specified below:

- (A) **"Affiliate"** means any insurance company controlling, controlled by or under common control with the Insurer.
- (B) **"Application"** means the application for this Policy, including any (i) materials or written information submitted therewith or made available to the Insurer during the underwriting process, or (ii) warranty, representation or other written statement provided to the Insurer, which **Application** shall be on file with the Insurer. Such **Application** shall be deemed a part of this Policy and attached hereto. In addition, **Application** includes any warranty, representation or other statement provided to us in connection with any policy of which this Policy is a renewal or replacement.
- (C) **"Automatic Extended Reporting Period"** means the period of time beginning with the effective date this Policy was cancelled or non renewed, and ending:
 - (1) 60 days after such cancellation or non renewal takes effect; or
 - (2) The date any other policy obtained by the **Named Entity** that provides similar coverage for **Professional Services** takes effectwhichever is earlier.
- (D) **"Claim"** shall have the meaning specified for such term in each Coverage Part.
- (E) **"Damages"** shall have the meaning specified for such term in each Coverage Part.

- (F) **"Defense Costs"** means:

- (1) reasonable legal fees and expenses, including, but not limited to, e-discovery expenses, incurred in the defense or appeal of a **Claim**; and
- (2) the costs of appeal, attachment or similar bonds, provided that the Insurer shall have no obligation to furnish such bonds.

However, **Defense Costs** shall not include:

- (a) salaries, wages, remuneration, overhead or benefit expenses associated with any **Insureds**;
 - (b) any fees, expenses or costs which are incurred by or on behalf of a party which is not a covered **Insured**; or
 - (c) any fees, expenses or costs which were incurred prior to the date on which the Insurer received written notice of **Claim** from the **Insured**.
- (G) “**Domestic Partner**” means any natural person qualifying as a domestic partner under the provisions of any applicable federal, state or local law or any domestic partner relationship arrangement recognized outside of the U.S. and under the Human Resource policy of the **Insured Entity**.
- (H) “**Effective Time**” means the actual time that a transaction is legally consummated as evidenced by the controlling documents of the transaction, including but not limited to the purchase and sale agreement, merger agreement, partnership agreement, or trust agreement.
- (I) “**Employee**” means any natural person who was, is or shall become a(n):
- (1) employee of an **Insured Entity** including any full time, part time, seasonal, temporary, leased, or loaned employee; or
 - (2) volunteer or intern with an **Insured Entity**.
- (J) “**Insured Entity**” means:
- (1) the **Named Entity**; and
 - (2) any **Other Insured Entities**..
- (K) “**Insured Person**” shall have the meaning specified for such term in each Coverage Part.
- (L) “**Insured**” shall have the meaning specified for such term in each Coverage Part.
- (M) “**Interrelated Wrongful Acts**” means **Wrongful Acts** that have as a common nexus any fact, circumstance, situation, event, or transaction, or series of causally connected facts, circumstances, situations, events, or transactions.
- (N) “**Liability Coverage Part**” means any liability coverage parts, included in the policy.
- (O) “**Loss**” means **Defense Costs** and **Damages**.
- (P) “**Mediation**” means the voluntary and otherwise non-binding process by which a qualified, professional mediator, appointed by the **Insured** and other parties to a **Claim** with the Insurer’s agreement, intercedes between the parties with the intention to reconcile them to resolve the **Claim**. Other dispute resolution by litigation or arbitration is specifically excluded from this definition.
- (Q) “**Named Entity**” means the entity or individual named in ITEM 1a of the Declarations.
- (R) “**Other Insured Entities**” means any additional entity or individual listed in ITEM 1b of the declarations page.
- (S) “**Policy Period**” means the period from the Inception Date to the Expiration Date set forth in Item 3 of the Declarations or any earlier cancellation date.

(T) “**Wrongful Act**” shall have the meaning specified for such term in each Coverage Part.

III. COVERAGE EXTENSIONS

(A) Spousal/Domestic Partner Liability Coverage

Coverage shall apply to the lawful spouse or **Domestic Partner** of an **Insured Person** for a **Claim** made against such spouse or **Domestic Partner**, provided that:

(1) such **Claim** arises solely out of:

(a) such person's status as the spouse or **Domestic Partner** of an **Insured Person**; or

(b) such spouse or **Domestic Partner's** ownership of property sought as recovery for a **Wrongful Act**;

(2) the **Insured Person** is named and maintained in such **Claim** together with the spouse or **Domestic Partner**; and

(3) coverage of the spouse or **Domestic Partner** shall be on the same terms and conditions, including any applicable Retention, as apply to coverage of the **Insured Person** for such **Claim**.

No coverage shall apply to any **Claim** for a **Wrongful Act** of such spouse or **Domestic Partner**.

(B) Estates and Legal Representatives

In the event of the death, incapacity or bankruptcy of an **Insured Person**, any **Claim** made against the estate, heirs, legal representatives or assigns of such **Insured Person** for a **Wrongful Act** of such **Insured Person** shall be deemed to be a **Claim** made against such **Insured Person**. No coverage shall apply to any **Claim** for a **Wrongful Act** of such estate, heirs, legal representatives or assigns.

IV. LIMIT OF LIABILITY

(A) The Per Claim Limit of Liability set forth in Item 4 of the Declarations shall be the maximum aggregate amount that the Insurer shall pay for all **Loss** arising from each **Claim** covered under this Policy. Further, the Per Claim Limit of Liability shall be the maximum aggregate amount that the Insurer shall pay for all **Loss** arising from, or in any way related to the same **Wrongful Act** or **Interrelated Wrongful Acts**.

(B) Notwithstanding the above, the Aggregate Limit of Liability – All Claims set forth in Item 4 of the Declarations:

(1) shall be the maximum aggregate amount that the Insurer shall pay for all **Loss** arising from all **Claims** covered under this Policy; and

(2) any amount specified as a Per Claim Limit of Liability in Item 4 of the Declarations shall be part of, and not in addition to, the amount stated as the Aggregate Limit of Liability – All Claims.

(C) Upon the Aggregate Limit of Liability – All Claims becoming exhausted, the premium for this Policy shall be deemed fully earned.

V. DEFENSE COSTS

Solely with respect to all **Liability Coverage Parts**:

Defense Costs shall be part of, and not in addition to, the Limits of Liability set forth in ITEM 4 of the Declarations, and payment of **Defense Costs** by the Insurer shall reduce and may exhaust such Limits of Liability.

VI. RETENTION

Solely with respect to all **Liability Coverage Parts**:

- (A) The Insurer shall pay **Loss** in excess of the Retention applicable to each **Claim** as specified in Item 5 of the Declarations.
- (B) All Retentions shall be borne by the **Insured** at its own risk.
- (C) The Retention shall apply to **Defense Costs** and **Damages** covered under this Policy. If, any **Defense Costs** or **Damages** are incurred by the Insurer prior to the **Insured's** complete payment of the Retention, then the **Insured** shall reimburse the Insurer therefor upon request.
- (D) If a **Claim** is covered under more than one Coverage Part, the applicable Retention for each Coverage Part shall be applied separately to such **Claim**, provided that the maximum Retention applied to such **Claim** shall not exceed the highest of such applicable Retentions.
- (E) If the Insurer and the **Insured** agree to resolve a **Claim** through voluntary **Mediation**, the **Insured's** retention obligation shall be reduced by 50% subject to a maximum reduction of \$25,000.
- (F) If a **Claim** made during the **Policy Period** is resolved by agreement with the consent of the **Named Entity** and the Insurer, as reflected in a signed settlement agreement:
 - (1) Within one year following the date that the **Claim** was first made against the **Insured** then the **Insured's** retention shall be reduced by 75%, up to a maximum of \$25,000; or
 - (2) Within two years following the date that the **Claim** was first made against the **Insured** then the **Insured's** retention shall be reduced by 50% up to a maximum of \$15,000.

If both (E) and (F) above could apply to a **Claim**, then only the Section which provides the largest benefit to the **Insured** will apply.

VII. DEFENSE AND SETTLEMENT

Solely with respect to all **Liability Coverage Parts**:

- (A) The Insurer shall have the right and duty to defend **Claims** covered under the Policy, even if such **Claim** is groundless, false or fraudulent, provided that the Insured gives notice to the Insurer in accordance with the applicable **Liability Coverage Parts'** notice provisions. Defense counsel shall be appointed by the Insurer.
- (B) If the Insurer has the duty to defend a **Claim**, the Insurer's duty to defend such **Claim** shall cease upon exhaustion of any applicable Limit of Liability.
- (C) The **Insured** shall not admit or assume any liability, make any settlement offer or enter into any settlement agreement, stipulate to any judgment, agree to any mediation or arbitration or incur any **Defense Costs** or any other costs regarding any **Claim** without the prior written consent of the Insurer, such consent not to be unreasonably withheld. The Insurer shall not be liable for any admission, assumption, settlement offer or agreement, stipulation, or **Defense Costs** to which it has not consented.
- (D) The Insurer shall have the right to associate itself in the defense and settlement of any **Claim** that appears reasonably likely to involve this Policy. The Insurer may make any investigation it deems appropriate in connection with any **Claim**. The Insurer may, with the written consent of the **Insured**, settle any **Claim** for a monetary amount that the Insurer deems reasonable. The **Insured's** consent shall not be unreasonably withheld.
- (E) The **Insured** shall give to the Insurer all information and cooperation as the Insurer may reasonably request. However, if the Insurer is, in its sole discretion, able to determine coverage for cooperating **Insureds**, the failure of one **Insured Person** to cooperate with the Insurer shall not impact coverage provided to cooperating **Insureds**.

VIII. MINIMUM STANDARDS

In the event that there is an inconsistency between:

- (A) the terms and conditions that are required to meet minimum standards of a state's law (pursuant to a state amendatory endorsement attached to this Policy); and
- (B) any other term or condition of this Policy:

It is understood and agreed that, where permitted by law, the Insurer shall apply those terms and conditions of (A) or (B) above that are more favorable to the **Insured**.

IX. AUTOMATIC EXTENDED REPORTING PERIOD

Solely with respect to all **Liability Coverage Parts**:

- (A) If any **Liability Coverage Part** is cancelled or non-renewed for any reason other than non-payment of premium then the **Insured** shall be provided with an non-cancelable **Automatic Extended Reporting Period**.
- (B) Coverage during the **Automatic Extended Reporting Period** shall apply to **Claims** made during the **Automatic Extended Reporting Period** for **Wrongful Acts** occurring prior to the end of the **Policy Period**.

X. EXTENDED REPORTING PERIOD

Solely with respect to all **Liability Coverage Parts**:

- (A) If any **Liability Coverage Part** is cancelled or non-renewed for any reason other than non-payment of premium, the **Insured** shall have the right to elect an extension of time to report **Claims** under such **Liability Coverage Part** (the "Extended Reporting Period").
- (B) To elect the Extended Reporting Period, the **Insured** shall send a written notice of election of the Extended Reporting Period to the Insurer together with the premium therefor. The right to elect the Extended Reporting Period shall end unless the Insurer receives such notice and premium within sixty (60) days of cancellation or non-renewal. There shall be no right to elect the Extended Reporting Period after such time.
- (C) The premium for the Extended Reporting Period shall be that percentage specified in Item 9 of the Declarations of the sum of the original annual premium plus the annualized amount of any additional premium charged by the Insurer during the **Policy Period**. Such premium shall be deemed fully earned at the inception of the Extended Reporting Period.
- (D) The Extended Reporting Period shall be for the duration specified in the Declarations following the end of the **Policy Period**.
- (E) Coverage during the Extended Reporting Period shall apply to **Claims** made during the Extended Reporting Period for **Wrongful Acts** occurring prior to the earlier of the end of the **Policy Period** or the time of any transaction described in **Section XV. CHANGES IN EXPOSURE**. No coverage shall apply for any **Wrongful Act** occurring after such time.
- (F) There is no separate or additional Limit of Liability for any Extended Reporting Period.
- (G) If the **Insured** is a sole proprietor and has been continuously insured for professional liability coverage with a member of the Hartford Financial Services Group, Inc. group of companies for three or more full consecutive years, an unlimited extended reporting period will be provided without additional charge if the **Insured**:
 - (1) cancels or fails to renew this policy due to the **Insured's** retirement as a design professional within the policy period;
 - (2) ceases the performance of all **Professional Services** covered by this policy; and

(3) is fifty-five (55) years of age or older; and

(4) notifies us in writing if this coverage is desired within sixty (60) days after the termination of the policy.

This retirement extended reporting period does not apply to claims that are covered under any subsequent insurance you purchase, or that would be covered but for exhaustion of the amount of insurance applicable to such claims.

XI. INTERRELATIONSHIP OF CLAIMS

Solely with respect to all **Liability Coverage Parts**:

All **Claims** based upon, arising from, or in any way related to the same **Wrongful Act**, or **Interrelated Wrongful Acts**, shall be deemed to be a single **Claim** for all purposes under this Policy first made on the earliest date that:

- (A) any of such **Claims** was first made, regardless of whether such date is before or during the **Policy Period**;
- (B) notice of any **Wrongful Act** described above was given to the Insurer under this Policy pursuant to the section titled Notice Of Claim found in the applicable **Liability Coverage Part**; or
- (C) notice of any **Wrongful Act** described above was given under any prior management liability, professional liability or errors and omissions insurance policy if such notice is accepted under such other policy.

XII. ALLOCATION

With respect to all **Liability Coverage Parts**:

Where **Insureds** who are afforded coverage for a **Claim** incur an amount consisting of both **Loss** that is covered by this Policy and also loss that is not covered by this Policy because such **Claim** includes both covered and uncovered matters, then coverage shall apply as follows:

- (A) with respect to a covered **Claim** for which the Insurer has the duty to defend:
 - (1) 100% of the **Insured's Defense Costs** shall be allocated to covered **Loss**; and
 - (2) All other **Loss** shall be allocated between covered **Loss** and non-covered loss based upon the relative legal exposure of all parties to such matters.

XIII. OTHER INSURANCE

If **Loss** arising from any **Claim** is insured under any other valid and collectible policy or policies, then this Policy shall apply only in excess of the amount of any deductibles, retentions and limits of liability under such other policy or policies, whether such other policy or policies are stated to be primary, contributory, excess, contingent or otherwise, unless such other insurance is written specifically excess of this Policy by reference in such other policy or policies to this Policy's Policy Number. Any payments made under any such policy(ies) will serve to offset any applicable retention amounts set forth in the Declarations.

XIV. CANCELLATION & NON-RENEWAL

- (A) The Insurer may cancel this Policy for non-payment of premium by sending notice to the **Named Entity** not less than 10 calendar days prior to the date of cancellation. The Insurer may cancel this policy, for reasons other than non-payment of premium, by sending notice to the **Named Entity** not less than 90 days prior to the date of cancellation.
- (B) The Insurer may non-renew this Policy by sending written notice to the **Named Entity** no less than 60 days before the expiration of the Policy.
- (C) The **Named Entity** may cancel this Policy by sending written notice of cancellation to the Insurer. Such notice shall be effective upon receipt by the Insurer unless a later cancellation time is specified therein.

- (D) If the Insurer cancels this Policy, unearned premium shall be calculated on a pro rata basis. If the **Named Entity** cancels this Policy, unearned premium shall be calculated at the Insurer's customary short rates. Payment of any unearned premium shall not be a condition precedent to the effectiveness of a cancellation. The Insurer shall make payment of any unearned premium which it received from the **Named Entity** as soon as practicable.

XV. CHANGES IN EXPOSURE

Solely with respect to all **Liability Coverage Parts**:

(A) Acquisitions or Created Subsidiaries

If, before or during the **Policy Period**, any **Insured Entity** acquires or creates an entity then such acquired or created entity, and any natural persons that would qualify as **Insured Persons** thereof, shall be an **Insured** to the extent such entities and persons would otherwise qualify as an **Insured** under the **Liability Coverage Parts**, but only for **Wrongful Acts** occurring after the **Effective Time** of such acquisition or creation. No coverage shall be available for any **Wrongful Act** of such **Insured** occurring before the **Effective Time** of such acquisition or creation, or for any **Interrelated Wrongful Acts** thereto.

The **Insured Entity** shall give the Insurer written notice and full, written details of the acquisition or creation as soon as practicable:

- (1) prior to the expiration or termination date of this Policy; or
- (2) within ninety (90) days of such acquisition or creation;

whichever date is later.

The Insurer shall be entitled to impose such additional terms, conditions, and premium as the Insurer, in its absolute discretion, chooses.

(B) Mergers

If, before or during the **Policy Period**, any **Insured Entity** merges with another entity such that the **Insured Entity** is the surviving entity, then such merged entity and any natural persons that would qualify as **Insured Persons** thereof, shall be an **Insured** to the extent such entities and persons would otherwise qualify as an **Insured** under the **Liability Coverage Parts**, but only for **Wrongful Acts** occurring after such merger. This coverage shall remain in force for 90 days beginning with the date of the merger. No coverage shall be available for any **Wrongful Act** of such **Insured** occurring before the **Effective Time** of such merger or for any **Interrelated Wrongful Acts** thereto.

The **Insured Entity** shall give the Insurer written notice and full, written details of the merger as soon as practicable:

- (1) prior to the expiration or termination date of this Policy; or
- (2) within ninety (90) days of such merger;

whichever date is later.

If the **Insured Entity** is not the surviving entity then coverage shall terminate on the effective date of the merger.

The Insurer shall be entitled to impose such additional terms, conditions, and premium as the Insurer, in its absolute discretion, chooses.

XVI. SUBROGATION

The Insurer shall be subrogated to all of the **Insured's** rights of recovery regarding any payment of **Loss** by the Insurer under this Policy. The **Insured** shall execute all papers required and do everything necessary to secure and preserve

such rights, including the execution of any documents necessary to enable the Insurer to effectively bring suit in the name of the **Insured**. The **Insured** shall do nothing to prejudice the Insurer's position or any potential or actual rights of recovery. If the **Insured** has waived its rights to recovery in a written contract or agreement executed prior to a **Claim** being made, then the Insurer will waive its rights to subrogation to the same extent as the **Insured's** waiver.

XVII. APPLICATION

- (A) The **Insured** represents that the declarations and statements contained in the **Application** are true, accurate and complete. This Policy is issued in reliance upon the **Application**.
- (B) If the **Application** contains misrepresentations or misrepresentations that materially affect the acceptance of the risk by the Insurer:
- (1) no coverage shall be afforded under this Policy for any **Insured** who knew on the Inception Date of this Policy of the facts that were so misrepresented, provided that knowledge possessed by any **Insured Person** shall not be imputed to any other **Insured Person**; and
 - (2) knowledge possessed by any principal, partner, chief executive officer, chief operating officer, general counsel, chief financial officer, risk manager, human resources director or any position equivalent to the foregoing of the **Insured Entity**, or anyone signing the **Application**, shall be imputed to all **Insured Entities**. No other person's knowledge shall be imputed to an **Insured Entity**.

XVIII. ACTION AGAINST THE INSURER

Solely with respect to all **Liability Coverage Parts**:

- (A) No action shall be taken against the Insurer unless there shall have been full compliance with all the terms and conditions of this Policy.
- (B) No person or organization shall have any right under this Policy to join the Insurer as a party to any **Claim** against the **Insured** nor shall the Insurer be impleaded by the **Insured** in any such **Claim**.

XIX. ASSIGNMENT

Assignment of interest under this Policy shall not bind the Insurer without its consent as specified in a written endorsement issued by the Insurer to form a part of this Policy.

XX. BANKRUPTCY OR INSOLVENCY

Bankruptcy or insolvency of any **Insured** shall not relieve the Insurer of any of its obligations under this Policy.

XXI. AUTHORIZATION OF NAMED ENTITY

The **Named Entity** shall act on behalf of all **Insureds** with respect to all matters under this Policy, including, without limitation, giving and receiving of notices regarding **Claims**, cancellation, election of the Extended Reporting Period, payment of premiums, receipt of any return premiums, and acceptance of any endorsements to this Policy.

XXII. CHANGES

This Policy shall not be changed or modified except in a written endorsement issued by the Insurer to form a part of this Policy.

XXIII. ENTIRE AGREEMENT

This Policy, including the Declarations, Common Terms and Conditions, included Coverage Part(s), **Application** and any written endorsements attached hereto, constitute the entire agreement between the **Insured** and the Insurer relating to this insurance.

XXIV. NOTICE ADDRESSES

- (A) All notices to the **Insured** shall be sent to the **Named Entity** at the address specified in Item 1 of the Declarations.
- (B) All notices to the Insurer shall be sent to the address specified in Item 10 of the Declarations. Any such notice shall be effective upon receipt by the Insurer at such address.

XXV. HEADINGS

The headings of the various sections of this Policy are intended for reference only and shall not be part of the terms and conditions of coverage.

XXVI. REFERENCES TO LAWS

- (A) Wherever this Policy mentions any law, including, without limitation, any statute, Act or Code of the U.S., such mention shall be deemed to include all amendments of, and all rules or regulations promulgated under, such law.
- (B) Wherever this Policy mentions any law or laws, including, without limitation, any statute, Act or Code of the U.S., and such mention is followed by the phrase "or any similar law", such phrase shall be deemed to include all similar laws of all jurisdictions throughout the world, including, without limitation, statutes and any rules or regulations promulgated under such statutes.

XXVII. COVERAGE TERRITORY

Coverage under this Policy applies worldwide.

XXVIII. LIBERALIZATION

If the Insurer obtains state approval for a new Design Professional Liability Policy that provides broader coverage than is provided under this Policy at any time during the current **Policy Period**, the broadened coverage will immediately apply to this Policy, except that it will not apply to **Claims** that were first made against the **Insured** prior to the effective date of such revision.

This endorsement, effective 12:01 am, 1/02/23
of policy number 16 OH 0419413-23

forms part

issued to: MB ARCHITECTURAL DESIGN & LLC

by: HARTFORD FIRE INSURANCE CO.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AT RISK CONSTRUCTION MANAGEMENT EXCLUSION

This endorsement modifies insurance provided under:

THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM

DESIGN PROFESSIONALS LIABILITY COVERAGE PART

It is agreed that Section **IV. Exclusions** is amended to include the following:

- In connection with any **Claim** based upon, arising from, or in any way related to any project for which:
 - (1) An **Insured's Professional Services** are limited to construction management; and
 - (2) Such **Insured**, or any entity or person for which such **Insured** is legally liable, is responsible for the construction, erection, fabrication, installation, assembly, manufacture, or supplying of equipment or materials.

All other terms and conditions remain unchanged.



Ross Fisher, President

This endorsement, effective 12:01 am, 1/02/23
of policy number 16 OH 0419413-23

forms part

issued to: MB ARCHITECTURAL DESIGN & LLC

by: HARTFORD FIRE INSURANCE CO.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

BLANKET NOTICE ENDORSEMENT

This endorsement modifies insurance provided under:

THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM

DESIGN PROFESSIONALS LIABILITY COVERAGE PART

It is agreed that:

The Insurer will provide 30 day's written notice prior to the effective date of:

- ☐ Cancellation of the policy.
- ☒ Cancellation of the policy for any reason other than nonpayment of premium.
- ☐ Nonrenewal of the policy.
- ☒ Reduction of policy limits by endorsement.
- ☐ Material change in coverage by endorsement.

The Insurer will provide this written notice using:

- ☒ Certified mail
- ☐ U. S. mail
- ☐ Other

The Insurer will provide this written notice to the persons or entities specified by the **Named Entity** provided that the Insurer receives a written request from the **Named Entity** listing the name and address of each of the entities designated to receive such notice. Should the policy be cancelled due to nonpayment of premium, the Insurer will provide 10 days written notice to the specified persons or entities.

The **Named Entity's** failure to provide the Insurer such list, and/or the Insurer's failure to send notice will not amend the cancellation date of the policy.

All other terms and conditions remain unchanged.



Ross Fisher, President

This endorsement, effective 12:01 am, 1/02/23
of policy number 16 OH 0419413-23

issued to: MB ARCHITECTURAL DESIGN & LLC

by: HARTFORD FIRE INSURANCE CO.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CONSTRUCTION AND SITE SAFETY EXCLUSION

This endorsement modifies insurance provided under:

THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM

DESIGN PROFESSIONALS LIABILITY COVERAGE PART

It is agreed that Section **IV. Exclusions** is amended to include the following:

In connection with any **Claim** based upon, arising from, or in any way related to:

- (1) Safety precautions and programs in connection with any project; or
- (2) Construction means, methods, techniques and sequences or procedures.

All other terms and conditions remain unchanged.

A handwritten signature in black ink, appearing to read 'R. Fisher', is written over a light gray rectangular background.

Ross Fisher, President

This endorsement, effective 12:01 am, 1/02/23
of policy number 16 OH 0419413-23

forms part

issued to: MB ARCHITECTURAL DESIGN & LLC

by: HARTFORD FIRE INSURANCE CO.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SPECIFIED PROFESSIONAL SERVICES EXCLUSION

This endorsement modifies coverage provided under:

THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM

DESIGN PROFESSIONALS LIABILITY POLICY

The following is added to Section **IV. Exclusions**:

In connection with any **Claim** based upon, arising from, or in any way related to the rendering of or failure to render the following **Professional Services**:

- Geotechnical Engineering
- Marine Engineering
- Process Engineering
- Construction Material Testing
- Environmental Remediation Consulting Services and/or Responsibility
- Ground Testing Soils/Surveys of Subsurface Conditions
- Inspection Services Related to the Purchase of Real Estate
- Manufacture, Lease, Sale or Distribution of Equipment
- Asbestos Remediation/Lead Abatement and/or Related Services
- Phase III Environmental Site Assessments

All other terms and conditions remain unchanged.



Ross Fisher, President

This endorsement, effective 12:01 am, 1/02/23
of policy number 16 OH 0419413-23

forms part

issued to: MB ARCHITECTURAL DESIGN & LLC

by: HARTFORD FIRE INSURANCE CO.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SPECIFIED PROJECT EXCLUSION

This endorsement modifies coverage provided under:

THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM

DESIGN PROFESSIONALS LIABILITY POLICY

It is agreed that:

The following is added to Section **IV. Exclusions**:

- In connection with any **Claim** based upon, arising from, or in any way related to the rendering of or failure to render **Professional Services** with respect to the following types of projects:
 - Amusement Rides
 - Dams or Tunnels
 - Harbors, Piers or Ports
 - Mines or Quarries
 - Nuclear or Atomic Facilities
 - Oil Refineries
 - Oil and Gas Pipelines
 - Pharmaceutical or Chemical Plants
 - Superfund Sites
 - Underground Storage Tanks
 - Underpinning
 - Industrial Wastewater Treatment
 - Water Features or Fountains

All other terms and conditions remain unchanged.



Ross Fisher, President

This endorsement, effective 12:01 am, 1/02/23
of policy number 16 OH 0419413-23

forms part

issued to: MB ARCHITECTURAL DESIGN & LLC

by: HARTFORD FIRE INSURANCE CO.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.
NEW JERSEY CANCELLATION AND NONRENEWAL ENDORSEMENT**

Wherever used in this endorsement: 1) "Insurer" means the insurance company which issued this policy; and 2) "Insured" means the Name of Insured, Name of Company, Name of Partnership, Parent Company, Name of Insured Plan or Trust, Name of Insured Entity, Named Entity, Named Real Estate Investment Trust(s), Name of Sponsor Company or Insured stated in ITEM A or ITEM 1 of the Declarations Page.

The Cancellation provision of the Policy is deleted and replaced by the following:

NOTICE OF CANCELLATION

Pursuant to New Jersey law, this Policy cannot be canceled or non-renewed for any underwriting reason or guideline which is arbitrary, capricious or unfairly discriminatory or without adequate prior notice to the **Insured**. The underwriting reasons or guidelines that an **Insurer** can use to cancel or nonrenew this Policy are maintained by the **Insurer** in writing and will be furnished to the **Insured** and/or the **Insured's** lawful representative upon written request.

The provision cited above shall not apply to any policy which has been in effect for less than sixty (60) days at the time notice of cancellation is mailed or delivered, unless the policy is a renewal policy.

CANCELLATION

- A. The **Insured** shown in the Declarations may cancel this Policy by mailing or delivering to the **Insurer** advance written notice of cancellation stating when there after such cancellation shall be effective.
- B. Cancellation of Policies In Effect For Sixty (60) Days or Less
 - 1. If this Policy has been in effect for less than sixty (60) days, the **Insurer** may cancel this Policy by mailing or delivering to the **Insured** and any person entitled to notice under this Policy written notice of cancellation at least:
 - a. 10 days before the effective date of cancellation if the **Insurer** cancels for:
 - (1) Nonpayment of premium; or
 - (2) Existence of a moral hazard, as defined in N.J.A.C. 11:1-20.2(f) as follows:
 - (a) "The risk, danger or probability that the **Insured** will destroy, or permit to be destroyed, the **Insured** property for the purpose of collecting the insurance proceeds. Any change in the circumstances of an **Insured** that will increase the probability of such a destruction may be considered a 'moral hazard'; and
 - (b) The substantial risk, danger or probability that the character, circumstances or personal habits of the **Insured** may increase the possibility of loss or liability for which an **Insurer** will be held responsible. Any change in the character or circumstances of an individual, corporate, partnership or other **Insured** that will increase the probability of such a loss or liability may be considered a 'moral hazard'."
 - b. thirty (30) days before the effective date of cancellation if the **Insurer** cancels for any other reason.
- C. Cancellation of Policies In Effect For Sixty (60) Days or More
 - 1. If this Policy has been in effect for 60 days or more or is a renewal of a policy the **Insurer** issued, the **Insurer** may cancel this Policy only for one or more of the following reasons:
 - a. Nonpayment of premium;
 - b. Existence of a moral hazard, as defined in N.J.A.C. 11:1-20.2(f);

ENDORSEMENT NO: 6

- c. Material misrepresentation or non-disclosure to the **Insurer** of a material fact at the time of acceptance of the risk;
- d. Increased hazard or material change in the risk assumed which the **Insurer** could not have reasonably contemplated at the time of assumption of the risk;
- e. Substantial breaches of contractual duties, conditions or warranties that materially affect the nature and/or insurability of the risk;
- f. Lack of cooperation from the **Insured** on loss control matters materially affecting insurability of the risk;
- g. Fraudulent acts against the **Insurer** by the **Insured** or its representative that materially affect the nature of the risk insured;
- h. Loss of or reduction in available insurance capacity;
- i. Material increase in exposure arising out of changes in statutory or case law subsequent to the issuance of the insurance contract or any subsequent renewal;
- j. Loss of or substantial changes in applicable reinsurance;
- k. Failure by the **Insured** to comply with any Federal, State or local fire, health, safety, building or construction regulation, law or ordinance with respect to an insured risk which substantially increases any hazard insured against within sixty (60) days of written notification of a violation of any such law, regulation or ordinance;
- l. Failure by the **Insured** to provide reasonable and necessary underwriting information to the **Insurer** upon written request therefor and a reasonable opportunity to respond; and
- m. Agency termination, provided:
 - (1) The **Insurer** documents that replacement coverage at comparable rates and terms has been provided to the **Insured**, and the **Insurer** has informed the first **Insured**, in writing, of the right to continue coverage with the **Insurer**; or
 - (2) The **Insurer** has informed the first **Insured**, in writing, of the right to continue coverage with the **Insurer**, and the **Insured** has agreed, in writing, to the cancellation or non-renewal based on the termination of the **Insured's** appointed agent.

2. If the **Insurer** cancels this Policy based on paragraph C. 1. a. or b. above in this Section, the **Insurer** will mail a written notice, stating the reason for cancellation, to the **Insured** and any person entitled to notice under this Policy, at least ten (10) days before the effective date of cancellation. For cancellation due to the nonpayment of premium, the notice will state the effect of nonpayment by the due date. Cancellation for nonpayment of premium will not be effective if payment of the amount due is made before the effective date set forth in the notice.

If the **Insurer** cancels this Policy for any other reason listed above, the **Insurer** will mail a written notice, stating the reason for cancellation, to the **Insured** and any person entitled to notice under this Policy, not more than one-hundred and twenty (120) days nor less than thirty (30) days before the effective date of such cancellation. Failure of the **Insured** to send such notice to any designated mortgagee or loss payee shall invalidate the cancellation only as to the mortgagee's or loss payee's interest.

- D. If this Policy shall be cancelled by the **Insured**, the **Insurer** shall retain the customary short rate proportion of the premium hereon, except as otherwise provided in this Policy. If the **Insurer** cancels this Policy, the **Insurer** shall retain the pro rata proportion of the premium hereon.
- E. 1. Notice of Cancellation will be sent to the **Insured** at the last mailing address known to the **Insurer** by:
- a. Certified mail; or
 - b. First class mail, if at the time of mailing the **Insurer** has obtained from the Post Office a date stamped proof of mailing showing the **Insured's** name and address, and the **Insurer** has retained a duplicate copy of the mailed notice.
2. The **Insurer** need not send notice of cancellation if the **Insured** has:
- a. Replaced coverage elsewhere; or
 - b. Specifically requested termination.

ENDORSEMENT NO: 6

- F. All notices of cancellation, except those for nonpayment of premium, must contain a statement which shall be clearly and prominently set out in boldface type or other manner which draws the reader's attention advising the **Insured** that the **Insured** may file a written complaint about the cancellation with the New Jersey Department of Insurance, Division of Enforcement and Consumer Protection, CN 325, Trenton, New Jersey 08625. The statement also shall advise the **Insured** to contact the Insurance Department immediately in the event he or she wishes to file a complaint.

The following provision is added:

NOTICE OF NONRENEWAL

- A. The **Insurer** may elect not to renew this Policy for any reasons permitted to cancel it. If the **Insurer** elects not to renew this Policy, the **Insurer** will mail a Notice of Nonrenewal, stating the reasons for non-renewal, to the **Insured** at least thirty (30) days but not more than one hundred and twenty (120) days before the expiration date of this Policy. If this Policy does not have a fixed expiration date, it shall be deemed to expire annually on the anniversary of its inception.
- B. Notice of non-renewal will be sent to the **Insured** at the last mailing address known to the **Insurer** by:
1. Certified mail; or
 2. First class mail, if at the time of mailing the **Insurer** has obtained from the Post Office a date stamped proof of mailing showing the **Insured's** name and address, and the **Insurer** has retained a duplicate copy of the mailed notice.
- C. The **Insurer** need not mail or deliver this notice if the **Insured** has:
1. Replaced coverage elsewhere; or
 2. Specifically requested termination.
- D. All Notices of Nonrenewal, except those for nonpayment of premium, must contain a statement which shall be clearly and prominently set out in boldface type or other manner which draws the reader's attention advising the **Insured** that the **Insured** may file a written complaint about the non-renewal with the New Jersey Department of Insurance, Division of Enforcement and Consumer Protection, PO Box 471, Trenton, New Jersey 08625-0471. The statement also shall advise the **Insured** to contact the Insurance Department immediately in the event he or she wishes to file a complaint.

All other terms and conditions remain unchanged.



Ross Fisher, President

The Hartford Premier Choice Professional Liability Policy

NOTICE: THIS LIABILITY COVERAGE PART PROVIDES CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE SPECIFIED HEREIN: COVERAGE APPLIES ONLY TO A CLAIM FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD AND WHICH HAS BEEN REPORTED TO THE INSURER IN ACCORDANCE WITH THE APPLICABLE NOTICE PROVISIONS. COVERAGE IS SUBJECT TO THE INSURED'S PAYMENT OF THE APPLICABLE RETENTION. PAYMENTS OF DEFENSE COSTS ARE SUBJECT TO, AND REDUCE, THE AVAILABLE LIMIT OF LIABILITY. PLEASE READ THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

DESIGN PROFESSIONALS LIABILITY COVERAGE PART

I. INSURING AGREEMENTS

(A) Professional Liability

The Insurer shall pay **Loss** that an **Insured** becomes legally obligated to pay as a result of a **Claim** made against the **Insured** for a **Wrongful Act** arising out of the performance of **Professional Services**.

(B) Personal Injury Liability

The Insurer shall pay **Loss** that an **Insured** becomes legally obligated to pay as a result of a **Claim** made against the **Insured** for a **Personal Injury Wrongful Act** arising out of the performance of **Professional Services**.

(C) Pollution Incident

The Insurer shall pay **Loss** that an **Insured** becomes legally obligated to pay as a result of a **Claim** made against the **Insured** for a **Pollution Incident** arising out of the performance of **Professional Services**.

(D) Network Intrusion Liability

The Insurer shall pay **Loss** that an **Insured** becomes legally obligated to pay as a result of a **Claim** made against the **Insured** for a **Network Intrusion** arising out of the performance of **Professional Services**.

Coverage under **SECTIONS (A), (B), (C) and (D)** above applies only if all of the following conditions are satisfied:

- (1) the **Wrongful Act, Personal Injury Wrongful Act, Pollution Incident, or Network Intrusion** giving rise to the **Claim** first takes place on or after the applicable **Retroactive Date**;
- (2) prior to the Policy's inception date, or the first such policy issued and continually renewed by the **Named Entity**, no board member, director, executive officer, partner, managing member, principal, general counsel, or risk manager of the **Named Entity** knew or could reasonably have foreseen that any **Wrongful Act, Personal Injury Wrongful Act, Pollution Incident, or Network Intrusion** might be expected to be the basis of a **Claim**; and
- (3) the **Claim** arising out of the **Wrongful Act, Personal Injury Wrongful Act, Pollution Incident, or Network Intrusion** is first made against the **Insured** during the **Policy Period**.

(E) Rectification Expense

The Insurer shall pay the **Named Entity** for **Rectification Expense** in excess of the retention and up to the Limits of Liability, provided that:

- (1) the **Named Entity** reports the **Design Error Circumstance** as soon as practicable during the **Policy Period**;

- (2) the **Named Entity** demonstrates to the Insurer's satisfaction there is a **Design Error** which is reasonably likely to give rise to a covered **Claim** under this policy;
- (3) within the **Policy Period** and prior to incurring any **Rectification Expense**, except for an **Emergency Response**, the **Named Entity** provides the Insurer with details as to how the **Named Entity** intends to minimize any potential liability resulting from the **Design Error** and the amount of **Rectification Expense** required for such action;
- (4) prior to incurring any **Rectification Expense** the Insurer agrees in writing to such **Rectification Expense** provided that such agreement is not required if the **Named Entity** can establish that an **Emergency Response** was necessary;
- (5) such **Design Error Circumstance** does not arise out of the same or similar **Design Error Circumstance** for which **Rectification Expenses** have previously been requested or paid; and
- (6) the **Named Entity** has not previously reported a **Design Error Circumstance** during the applicable **Policy Period**.

Such **Rectification Expense** will be reimbursed within 90 days of the **Named Entity's** submission of proof of loss of such **Rectification Expense**.

In the event that a **Claim** arises out of the **Design Error**, the Insurer may, at its sole discretion, cease paying further **Rectification Expense** associated with such **Design Error Circumstance**.

II. SUPPLEMENTARY PAYMENTS

(A) Disciplinary Proceedings Coverage

Notwithstanding any other provisions of this Policy, but subject to all terms and conditions of this Policy, the Insurer shall reimburse **Defense Costs** (but not **Damages**) incurred for defending a proceeding first brought against an **Insured** during the **Policy Period** before a regulatory or governmental disciplinary official or agency alleging professional misconduct in the rendering of or failure to render **Professional Services**, up to a maximum payment by the Insurer, regardless of the number of proceedings brought by a regulatory or disciplinary official or agency, as set forth on the Declarations. This amount will not be included within (and shall not serve to reduce) the Limits of Liability and is not subject to any retention obligation of the **Insured**. In order to receive coverage under this provision, the disciplinary proceeding must commence during the **Policy Period** and the **Insured** must give written notice during the **Policy Period** of any regulatory or disciplinary allegation made against any **Insured**. The Insurer shall not be obligated to defend any disciplinary action, or pay any fine penalty or award resulting from a disciplinary action.

(B) Expense and Loss of Earning Reimbursements

Notwithstanding any other provisions of this Policy, but subject to all terms and conditions of this Policy, the Insurer shall reimburse reasonable and necessary expenses, other than **Defense Costs**, incurred with the Insurer's prior written consent by an **Insured** in the investigation or litigation of any **Claim**, including actual loss of earnings up to the amount set forth on the Declarations. This amount will not be included within (and shall not reduce) the Limits of Liability.

(C) Subpoena Assistance Coverage

If, during the **Policy Period**, an **Insured** receives a subpoena for documents or testimony as a fact witness arising from a **Professional Service** which occurred on or after the **Retroactive Date**, and the **Insured** requests the Insurer's assistance, then the Insurer will appoint an attorney to represent the **Insured** regarding the production of documents, to prepare the **Insured** for sworn testimony, and to represent the **Insured** at their deposition provided that:

- (1) the subpoena arises out of a lawsuit or other legal proceeding to which the **Insured** is not a party and

- (2) the **Insured** has not been engaged to provide advice or testimony in connection with the lawsuit and the **Insured** has not been engaged to provide such advice or testimony in the past.

Regardless of the number of subpoenas received or the number of individuals receiving subpoenas, the maximum limit for this coverage is set forth on the Declarations. This amount will not be included in (and shall not reduce) the Limits of Liability.

(D) FHA, OSHA and ADA Proceedings Reimbursement

Notwithstanding any other provisions of this Policy, but subject to all terms and conditions of this Policy, the Insurer shall reimburse, subject to the limit set forth on the Declarations, all reasonable and necessary legal fees, costs or expenses incurred by an **Insured** in responding to regulatory or administrative actions brought directly against the **Insured** by a governmental agency under the Fair Housing Act (FHA), Occupational Safety and Health Act (OSHA) or the Americans with Disability Act (ADA), provided that the regulatory or administrative action under FHA, OSHA and ADA is first commenced against the **Insured** during the **Policy Period** and is the result of an **Insured's Professional Services**.

(E) Pre Claim Assistance and Prevention Expense

The Insurer will, at its sole discretion, pay all fees, costs and expenses which an **Insured** incurs in the investigation and mitigation of any potential **Claim** reported by the **Insured** in accordance with **Section V. (B) Notice of Claim** provided that said fees, costs and expenses are authorized and incurred prior to the date that a **Claim** is actually made. Any fees, costs and expenses incurred after the date that a **Claim** is made are subject to the **Limit of Liability** and **Retention** sections of the Policy.

(F) Crisis Event Management Reimbursement

The Insurer will reimburse an **Insured** for **Crisis Event Management Expenses** that are a direct result of a **Crisis Event** which first occurs and is reported to the Insurer during the **Policy Period**. The maximum amount payable, regardless of the number of **Crisis Events** or the number of **Insureds**, shall be the amount set forth in the Declarations. The Insurer will issue reimbursement, as set forth above, at the written request of the **Named Entity**.

(G) Non Profit Directors and Officers Coverage

The Insurer will reimburse an **Insured** for any amounts, including reasonable attorneys' fees, costs and expenses incurred by counsel, that the **Insured** becomes legally obligated to pay as a result of a demand for money or services first made against the **Insured** and reported in writing to the Insurer during the **Policy Period** arising out of the **Insured's** acts, errors or omissions in the **Insured's** capacity as a director or officer of a **Non Profit entity**. The maximum amount payable per **Policy Period** shall be the amount set forth in the Declarations.

(H) Client Entity(ies) Fee Assistance

If a **Client Entity(ies)** is 180 days or more past due in paying a fee owed to an **Insured** and as a result of the **Insured's** collection efforts the **Client Entity(ies)** brings a **Claim** against the **Insured** alleging negligence in the rendering of a **Professional Service** and:

- (1) the claim is for an amount in excess of the past due payment;
- (2) the **Professional Services** were fully rendered as per a fully executed professional services contract between the **Insured** and the **Client Entity(ies)**; and
- (3) the **Insured** and the **Client Entity(ies)** have executed an agreement approved by the Insurer whereby the **Client Entity(ies)** agrees to withdraw their **Claim**;

then the Insurer agrees to pay the **Insured** 50% of the amount of the past due payment. The maximum amount payable per **Policy Period** is as set forth in the Declarations.

III. DEFINITIONS

The following terms, whether used in the singular or plural, shall have the meanings specified below:

- (A) **“Client Entity(ies)”** means any individual, partnership, corporation or limited liability company, other than those that qualify as **Insureds** under this Policy, to whom the **Insured** provides **Professional Services**.
- (B) **“Claim”** means:
- (1) a written demand seeking monetary , injunctive, declaratory or other non-monetary relief;
 - (2) a civil proceeding, including an arbitration or other alternative dispute proceeding, commenced by the service of a complaint, filing of a demand for arbitration, or similar pleading; or
 - (3) a request received by an **Insured** to toll or waive the statute of limitations or other bars against the filing or maintenance of a lawsuit or arbitration proceeding seeking **Damages** against, or services from, an **Insured**.
- (C) **“Computer System(s)”** means the following if leased or owned by a **Client Entity(ies)** or operated on their behalf by a third party service provider: computers, input and output devices, network devices and equipment, peripheral devices, storage devices, back-up facilities, mobile devices, and associated computer programs, software and applications, including cloud-based computer programs, software and applications.
- (D) **“Crisis Event “** means any:
- (1) **Wrongful Act**;
 - (2) death, departure or debilitating illness of a member of the board of managers, director, executive officer, natural person partner or principal of the **Named Entity**;
 - (3) potential dissolution of the **Named Entity** for any reason other than bankruptcy;
 - (4) incident of workplace violence or accident that results in negative local or national media coverage; or
 - (5) other significant event;
- that the **Named Entity** reasonably believes will have a material adverse effect upon the **Insured’s** reputation.
- (E) **“Crisis Event Management Expenses”** means reasonable fees, costs and expenses incurred by the **Named Entity** and approved by the Insurer for consulting services provided by a public relations firm or law firm to the **Named Entity** in response to a **Crisis Event**.
- (F) **“Damages”** means the amounts, other than **Defense Costs**, that an **Insured** is legally liable to pay solely as a result of a **Claim** covered by this **Liability Coverage Part**, including:
- (1) compensatory damages;
 - (2) settlement amounts;
 - (3) pre- and post-judgment interest;
 - (4) costs awarded pursuant to judgments;
 - (5) punitive and exemplary damages;
 - (6) the multiple portion of any multiplied damage award; and
 - (7) claimant’s attorney fees awarded by a court.

However, **Damages** shall not include:

- (a) taxes, fines or penalties imposed by law;
 - (b) equitable, injunctive or other non-monetary relief;
 - (c) any other matters uninsurable pursuant to any applicable law; provided, however, that with respect to punitive and exemplary damages or the multiple portion of any multiplied damage award, the insurability of such damages shall be governed by the internal laws of any applicable jurisdiction that most favors coverage of such damages; and
 - (d) restitution and disgorgement of profits, fees, costs and expenses paid or incurred or charged by an **Insured**, no matter whether claimed as restitution of specific funds, forfeiture, financial loss, set-off or otherwise; nor economic injuries that are a consequence of any of the foregoing.
- (G) **“Design Error”** means a **Wrongful Act** but does not include any actual or alleged negligence in the review of shop drawings and submittals, issuance of change orders, observation of construction or review of any contractor’s request for payment.
- (H) **“Design Error Circumstance”** means a situation arising out of a **Design Error** for which the **Named Entity** has requested reimbursement of a **Rectification Expense** from the Insurer.
- (I) **“Emergency Response”** means an action taken by an **Insured** to rectify a **Design Error** that prevents imminent bodily injury or material physical harm to or destruction of tangible property due to a **Design Error** which is otherwise insured under this Policy.
- (J) **“Insured Person”** means:
- (1) any person who was, is now, or hereafter becomes principal, partner, officer, director, employee, or principal shareholder of an **Insured Entity**, but only if such person was performing **Professional Services** on behalf of an **Insured Entity** at the time of the alleged **Wrongful Act**;
 - (2) any retired partner, principal, officer, director, shareholder, employee, or member of an **Insured Entity** while acting within the scope of their duties as a consultant for the **Insured Entity** or any **Predecessor Firm**; or
 - (3) any past or present independent contractor or leased employee of an **Insured Entity** but only while acting within the scope of their duties for the **Insured Entity**.
- (K) **“Insured(s)”** means any:
- (1) **Insured Entity**;
 - (2) **Insured Person**;
 - (3) **Predecessor Firm(s)**; or
 - (4) All joint ventures entered into, but only for legal liabilities arising out of **Wrongful Acts** caused by an **Insured Person** or by an **Insured Entity**. No coverage will be afforded to the joint venture itself or any other person or entity that is a part of such joint venture.
- (L) **“Network Intrusion”** means the gaining of access to or use of a **Client Entity(ies) Computer System** by an unauthorized person, or by an authorized person in an unauthorized manner.
- (M) **“Non Profit Entity”** means non-profit corporation, community chest, fund or foundation that is exempt from federal income tax as an entity described in Section 501(c)(3) of the Internal Revenue Code of 1986, as amended.
- (N) **“Personal Injury Wrongful Act”** means:
- (1) false arrest, detention or imprisonment;

- (2) abuse of process or malicious prosecution;
- (3) wrongful eviction from, wrongful entry into, or the invasion of the right of private occupancy of a room, dwelling or premises that a person occupies by or on behalf of its owner, landlord or lessor;
- (4) the publication or utterance of a libel or slander or other defamatory or disparaging material; or publication or utterance in violation of an individual's right of privacy; or use of the name or likeness of a person in violation of an individual's right to privacy; or
- (5) infringement of copyright or trade dress.

(O) **"Predecessor Firm"** means any design firm (partnership, professional association, limited liability partnership, sole proprietorship, limited liability corporation or corporation) as of the policy period inception date in the Declarations, which has undergone dissolution or is inactive and no longer providing **Professional Services**, and at least 51% of such firm assets and liabilities have been assigned, acquired or transferred to an **Insured Entity**.

(P) **"Pollution Incident"** means the actual or alleged discharge, dispersal, seepage, migration, or escape of smoke, vapor, fumes, acids, alkalis, chemicals, asbestos, liquid or gases, waste materials or other irritants, contaminants, or pollutants into or upon, land, atmosphere or any water course or body of water and caused by a **Professional Service** committed by an **Insured** or by any entity or person for whom the **Insured** is legally responsible. Waste materials include materials to be recycled, reconditioned or reclaimed.

(Q) **"Professional Services"** means services performed by an **Insured** for others in the **Insured's** practice as:

- (1) an architect, engineer, land surveyor, landscape architect, construction manager, space planner, land planner, interior designer, scientist, technical consultant, or expert witness professional; and
- (2) a member of a formal accreditation, standards review, or other professional board or committee for the Design Professional profession.

Professional Services also includes information technology services provided for others in the rendering of the **Professional Services** described above. Information technology services include software consultation, interoperability analysis, programming, hosting, and design support and maintenance of websites, software or databases.

However **Professional Services** shall not include any services to computer or telecommunications hardware or the supplying of electronic products or software, except where the software was designed or modified in connection with the rendering of **Professional Services** to a **Client Entity(ies)**.

(R) **"Rectification Expense"** means reasonable and necessary costs incurred by the **Named Entity** for the rectification of a **Design Error** caused by **Professional Services** in any part of a project for which the **Insured** was responsible for the design. **Rectification Expense** does not include any overhead, mark up, profit or any fee, charge, cost, or expense incurred by any **Insured** for materials supplied or services performed by any **Insured**.

(S) **"Retroactive Date"** means the date specified in the Declarations, or in any endorsement attached to this Policy, on or after which the **Wrongful Act** must have occurred in order for any **Claim** or any notification given to us pursuant to **V. NOTICE OF CLAIM** to be covered under this Policy.

(T) **"Wrongful Act"** means an actual or alleged act, error or omission in the performance of or the failure to perform **Professional Services** including a **Personal Injury Wrongful Act**, **Pollution Incident**, or a **Network Intrusion** committed or alleged to have been committed by an **Insured** or by any entity (including a joint venture) or person for whom the **Insured** is legally liable.

IV. EXCLUSIONS APPLICABLE TO ALL INSURING AGREEMENTS

The following exclusions apply to all Insuring Agreements and any coverage provided by endorsement to this Policy.

The Insurer shall not pay any **Loss**:

- (A) In connection with any **Claim** based upon, arising from, or in any way related to any prior or pending written demand, suit or proceeding against an **Insured** as of the applicable Prior or Pending Date in ITEM 8 of the Declarations or the same or any substantially similar fact, circumstance or situation underlying or alleged in such demand, suit or proceeding.
- (B) In connection with any **Claim** based upon, arising from, or in any way related to any fact, circumstance or situation that, before the Inception Date in ITEM 3 of the Declarations, was the subject of any notice given under any other errors and omissions, professional liability or cyber liability insurance policy of which this **Liability Coverage Part** is a direct or indirect renewal or replacement.
- (C) In connection with any **Claim** based upon, arising from, or in any way related to the liability of others assumed under any contract or agreement, including any warranty or guarantee, provided that this exclusion shall not apply to liability that would have been incurred in the absence of such contract or agreement.
- (D) In connection with any **Claim** based upon, arising from, or in any way related to:
 - (1) an **Insured** gaining any personal profit, remuneration or financial advantage to which such **Insured** is not legally entitled;
 - (2) any intentional **Wrongful Act** or any deliberately fraudulent act or omission or any willful violation of law by an **Insured**; or
 - (3) any actual or alleged criminal or unlawful acts by an **Insured**.

Regarding this **Exclusion**, the **Wrongful Acts** of an **Insured** will not be imputed to any other **Insured** unless said other **Insured** knew of the **Wrongful Act**.

The Insurer will provide the **Insured** with a defense of such **Claim** unless and until such dishonest, intentionally wrongful, fraudulent, criminal or malicious act error or omission has been determined by any final adjudication, finding of fact, or admission by any **Insured**. Such defense will not waive any of the Insurer's rights under this Policy. Upon establishment that the dishonest, intentionally wrongful, fraudulent, criminal or malicious act, error or omission by the **Insured** was committed, the Insurer will have the right to seek recovery of the **Defense Costs** incurred from the **Insured** found to have committed such acts, errors or omissions.

- (E) In connection with any **Claim** made, directly or indirectly, by or on behalf of, or with the assistance of:
 - (1) an **Insured**;
 - (2) any entity which is operated, controlled or managed by an **Insured**;
 - (3) any entity or individual that operates, manages, or is wholly or partly owned by an **Insured**; and
 - (4) Any entity in which an **Insured** or the spouse or legal domestic partner of an **Insured** individually or collectively has an ownership interest in excess of 49%.
- (F) In connection with any **Claim** based upon, arising from, or in any way related to the actual or alleged discrimination, humiliation, harassment or misconduct by an **Insured** because of race, creed, color, age, gender, sexual preference or orientation, national origin, religion, disability, handicap, marital status or any other class protected under federal, state, local or other law.
- (G) In connection with any **Claim** made, directly or indirectly, by or on behalf of any employee, former employee of an **Insured** or applicant for employment.
- (H) In connection with any **Claim** based upon, arising from, or in any way related to the performance or failure to perform any services other than a **Professional Service**.

- (I) In connection with any **Claim** based upon, arising from, or in any way related to any nuclear reaction, radiation, or contamination, under any circumstances and regardless of cause, within or originating from a site where a nuclear reactor is located or where nuclear waste or material is disposed.
- (J) In connection with any **Claim** based upon, arising from or in any way related to the design or manufacture of any products or goods which are sold or supplied by the **Insured** or by others under license from the **Insured**. However, this exclusion does not apply to:
 - (1) software designed or modified for a **Client Entity(ies)** in connection with a **Professional Service** for that **Client Entity(ies)**; and
 - (2) The supplying of furnishings or fixtures by the **Insured** as part of an interior design or decorating service.
- (K) In connection with any **Claim** based upon, arising from, or in any way related to the cost to repair or replace faulty workmanship the **Insured** performed on any construction, erection, fabrication, installation, assembly, manufacture, remediation, drilling, dismantling, demolition, excavation, dredging, including the cost of equipment, parts or materials furnished in connection therewith. However, this exclusion does not apply to drilling, excavation or other sampling or testing procedures required to perform **Professional Services** otherwise insured by this policy.
- (L) In connection with any **Claim** based upon, arising from or in any way related to a **Pollution Incident** at, onto or from property or facilities which are or were at any time owned, rented or occupied by the **Insured** or any entity in joint venture with the **Insured**.
- (M) In connection with any **Claim** based upon, arising from, or in any way related to the actual or alleged **Wrongful Act** which first occurred prior to the **Retroactive Date**.
- (N) In connection with any liability assumed by an **Insured** under an indemnity, hold harmless or liquidated damages provision or similar provisions or agreements, but this exclusion does not apply to liability an **Insured** would have in the absence of such agreements.

V. NOTICE OF CLAIM

- (A) As a condition precedent to coverage under this **Liability Coverage Part**, an **Insured** shall give the Insurer written notice of any **Claim** as soon as practicable after the **Insured** becomes aware of such **Claim**, but in no event later than:
 - (1) if this Policy expires (or is otherwise terminated) without being renewed with the Insurer, sixty (60) days after the effective date of said expiration or termination; or sixty (60) days after the expiration of the last policy issued by this Insurer as a renewal of this policy, whichever is later; or
 - (2) the expiration of the Extended Reporting Period, if applicable.

provided, that if this Policy is cancelled for non payment of premium, the **Insured** will give to the Insurer written notice of such **Claim**, prior to the effective date of cancellation.
- (B) If, during the **Policy Period**, an **Insured** first becomes aware of an act, error or omission that may reasonably be expected to give rise to a **Claim**, and, if written notice of such act, error or omission is given to the Insurer during the **Policy Period**, including:
 - (1) the reasons for anticipating such a **Claim**;
 - (2) the specific nature and date of the act, error or omission;
 - (3) the **Professional Services** or activities which the **Insured** provided or engaged in;
 - (4) the identity of the **Insureds** allegedly involved, the alleged injuries or damages sustained;
 - (5) the names of potential claimants; and
 - (6) the potential damages or injury, the manner in which the **Insureds** first became aware of the act, error or omission,

then any **Claim** subsequently made which arises from such act, error or omission shall be deemed to be a **Claim** first made during the **Policy Period**, and therefore subject to the terms and conditions of this Policy, including, without limitation, Section **VII. DEFENSE AND SETTLEMENT** of the Common Terms and Conditions and the reporting requirements set forth in this **Liability Coverage Part**, on the date that the Insurer receives the above notice.



U.S. DEPARTMENT OF THE TREASURY, OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by the United States. **Please read this Notice carefully.**

The Office of Foreign Assets Control ("OFAC") of the U.S. Department of the Treasury administers and enforces economic and trade sanctions based on U.S. foreign policy and national security goals against targeted foreign countries and regimes, terrorists, international narcotics traffickers, those engaged in activities related to the proliferation of weapons of mass destruction, and other threats to the national security, foreign policy or economy of the United States. OFAC acts under Presidential national emergency powers, as well as authority granted by specific legislation, to impose controls on transactions and freeze assets under U.S. jurisdiction. OFAC publishes a list of individuals and companies owned or controlled by, or acting for or on behalf of, targeted countries. It also lists individuals, groups, and entities, such as terrorists and narcotics traffickers designated under programs that are not country-specific. Collectively, such individuals and companies are called "Specially Designated Nationals and Blocked Persons" or "SDNs". Their assets are blocked and U.S. persons are generally prohibited from dealing with them. This list can be located on OFAC's web site at — <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is an SDN, as identified by OFAC, the policy is a blocked contract and all dealings with it must involve OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC.



Producer Compensation Notice

You can review and obtain information on The Hartford's producer compensation practices at www.thehartford.com or at 1-800-592-5717.